

MASTER SERVICES AGREEMENT (CLOUD INFRASTRUCTURE)

CONFIDENTIAL & PROPRIETARY LEGAL INSTRUMENT

RECITALS & PREAMBLE. PARTIES AND EFFECTIVE DATE

This Master Services Agreement ("Agreement") is entered into and made effective as of January 1, 2026 ("Effective Date"), by and between Enterprise Cloud Solutions Inc., a Delaware corporation with principal offices at 100 Technology Plaza, Wilmington, DE ("Provider"), and Global Logistics Partners LLC, a California limited liability company with principal offices at 500 Port Avenue, Oakland, CA ("Customer"). Provider and Customer are each individually referred to herein as a "Party" and collectively as the "Parties".

WHEREAS, Provider owns and operates proprietary distributed enterprise cloud computing and automation services; and WHEREAS, Customer desires to procure access to Provider's cloud infrastructure services pursuant to specific Statements of Work ("SOW") or Service Orders issued hereunder.

SECTION 1. DEFINITIONS

1.1 "Authorized Users" means Customer's employees, agents, and independent contractors authorized by Customer to access the Cloud Services in accordance with this Agreement and any applicable SOW.

1.2 "Customer Data" means any business records, personal information, data streams, documents, and technical traces uploaded, submitted, or processed by Customer or Authorized Users within the Service environment.

1.3 "Service Level Commitment" means the uptime and latency performance criteria set forth in Exhibit A (Service Level Agreement).

1.4 "Confidential Information" has the meaning ascribed to it in Section 4.1 hereof.

SECTION 2. SCOPE OF SERVICES AND ORDERING

2.1 Provision of Services: Provider shall make the Cloud Services available to Customer during the Term subject to the operational terms of this Agreement and applicable Service Orders. Provider hereby grants Customer a non-exclusive, non-transferable, revocable license during the Term to access and utilize the Cloud Services solely for Customer's internal enterprise operations.

2.2 Usage Caps and Restrictions: Customer shall not (i) decompile, disassemble, reverse engineer or attempt to derive the source code of the Cloud Services; (ii) copy, distribute, sublicense or resell access to any third party; or (iii) exceed the concurrent token bandwidth or API query quotas set forth in the applicable Service Order.

SECTION 3. FEES, INVOICING, AND AUDIT RIGHTS

3.1 Invoicing and Payment Terms: Customer shall pay all fees specified in the applicable Service Orders. Unless otherwise stated in an SOW, all subscription and consumption fees shall be billed monthly in advance and usage-based compute charges shall be billed monthly in arrears. Customer shall remit payment within thirty (30) days following receipt of an electronic invoice ("Payment Period").

3.2 Late Charges and Taxes: Delinquent balances shall accrue interest at the lesser of one and one-half percent (1.5%) per month or the highest statutory rate permitted by applicable law. All amounts payable hereunder exclude applicable sales, use, excise, or value-added taxes (VAT), which shall be the sole responsibility of Customer.

3.3 Audit Rights: Once per calendar year upon thirty (30) business days prior written notice, Provider may audit Customer's usage records and user credentials solely to verify compliance with license limits. Any such audit shall be conducted during normal business hours without unreasonably disrupting Customer's ongoing business.

SECTION 4. CONFIDENTIALITY AND INTELLECTUAL PROPERTY

4.1 Protection of Confidential Information: Each Party ("Receiving Party") agrees that all code, trade secrets, architecture diagrams, pricing terms, and business plans disclosed by the other Party ("Disclosing Party") constitute Confidential Information. The Receiving Party shall hold such information in strict confidence, exercising at least a reasonable standard of care, and shall not disclose it to any third party other than affiliates, legal advisors, and auditors bound by confidentiality obligations at least as protective as those herein.

4.2 Intellectual Property Ownership: As between Provider and Customer, Provider retains all right, title, and interest, including all patent, copyright, trademark, and trade secret rights, in and to the Cloud Services, core models, algorithms, and documentation. Customer retains sole and exclusive ownership of all Customer Data.

4.3 Survival of Confidentiality: Obligations concerning Confidential Information shall survive termination or expiration of this Agreement for a period of five (5) years, provided that trade secrets and core technical specifications shall remain protected indefinitely.

SECTION 5. DATA PRIVACY AND SECURITY CONTROLS

5.1 Security Safeguards: Provider shall maintain comprehensive administrative, physical, and technical safeguards designed to protect the security, confidentiality, and integrity of Customer Data, including compliance with SOC 2 Type II and ISO/IEC 27001 standards.

5.2 Data Breach Notification: In the event Provider confirms an unauthorized acquisition, destruction, or disclosure of Customer Data ("Security Incident"), Provider shall notify Customer in writing without undue delay, and in any event within forty-eight (48) hours of confirmation, and shall take all commercially reasonable actions to remediate the incident.

SECTION 6. REPRESENTATIONS AND WARRANTIES

6.1 Mutual Representations: Each Party represents and warrants that it is duly organized, validly existing, and has the requisite legal authority to enter into and perform its obligations under this Agreement.

6.2 Service Performance Warranty: Provider warrants that during the subscription term, the Cloud Services will operate in substantial accordance with the applicable technical documentation. For any breach of this warranty, Customer's exclusive remedy shall be the service credit schedule described in Exhibit A.

SECTION 7. INDEMNIFICATION

7.1 Provider Indemnification: Provider shall defend, indemnify, and hold harmless Customer and its officers, directors, and employees against any third-party claims, suits, or proceedings alleging that Customer's authorized use of the Cloud Services infringes or misappropriates a valid United States patent, copyright, or trademark.

7.2 Customer Indemnification: Customer shall defend, indemnify, and hold harmless Provider against any claims arising from (i) Customer Data violating third-party privacy or intellectual property rights; or (ii) unauthorized use of the Services by Customer's Authorized Users in violation of law.

SECTION 8. LIMITATION OF LIABILITY

8.1 Consequential Damages Waiver: TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING LOSS OF PROFITS, DATA LOSS, REPUTATIONAL INJURY, OR BUSINESS INTERRUPTION, REGARDLESS OF THE THEORY OF LIABILITY.

8.2 Aggregate Liability Cap: EXCEPT FOR WILLFUL MISCONDUCT, GROSS NEGLIGENCE, OR INDEMNIFICATION OBLIGATIONS UNDER SECTION 7, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL BE STRICTLY LIMITED TO THE TOTAL AMOUNTS ACTUALLY PAID BY CUSTOMER TO PROVIDER UNDER THE APPLICABLE SOW DURING THE TWELVE (12) MONTHS PRECEDING THE OCCURRENCE GIVING RISE TO LIABILITY.

SECTION 9. SERVICE LEVEL COMMITMENT (SLA)

9.1 Uptime Commitment: Provider guarantees a Monthly Uptime Percentage of at least 99.9% across each calendar month, excluding scheduled maintenance windows announced at least seventy-two (72) hours in advance.

9.2 SLA Credits: If the Monthly Uptime falls below 99.9%, Customer is eligible for a credit calculated as follows: (i) 99.0% to 99.89%: 10% monthly service credit; (ii) 95.0% to 98.99%: 25% monthly service credit; (iii) Below 95.0%: 50% monthly service credit. Service credits shall be applied against the next invoice.

SECTION 10. FORCE MAJEURE

10.1 Excused Delays: Neither Party shall be held in breach or default for failure or delay in performance caused by circumstances beyond its reasonable control, including acts of God, flood, earthquake, armed conflict, severe regional power grid collapse, or nationwide telecommunication fiber cuts.

10.2 Exclusions: Economic downturns, price fluctuations in server silicon, market changes, and inability to pay debts shall specifically NOT constitute force majeure events.

SECTION 11. DISPUTE RESOLUTION AND ARBITRATION

11.1 Informal Negotiation: Prior to commencing any formal litigation, executive representatives of both Parties shall meet in good faith within fifteen (15) business days of written notice to attempt informal resolution.

11.2 Binding Arbitration: If informal negotiations fail, all disputes arising hereunder shall be submitted to final and binding arbitration administered by JAMS in Wilmington, Delaware, under its Comprehensive Arbitration Rules.

SECTION 12. TERM AND TERMINATION (CRITICAL OPERATIONAL CLAUSES)

12.1 Term of Agreement: This Agreement commences on the Effective Date and shall continue in effect for an initial period of thirty-six (36) months ("Initial Term"), unless terminated earlier in accordance with this Section 12.

Thereafter, this Agreement shall automatically renew for successive twelve (12) month periods unless either Party provides notice of non-renewal.

12.2 Termination for Cause / Material Breach: Either Party may terminate this Agreement or any specific SOW immediately upon written notice if the other Party commits a material breach of any provision hereof and fails to cure such material breach within thirty (30) calendar days after receipt of written notice specifying the breach with reasonable detail. Furthermore, either Party may terminate immediately without cure opportunity if the other Party becomes insolvent, enters receivership, or files for bankruptcy protection under Chapter 7 or Chapter 11.

12.3 Termination for Convenience: Customer may terminate this Agreement or any active Service Order for convenience without cause at any time upon providing at least sixty (60) days prior written notice to Provider. In the event Customer exercises termination for convenience, Customer shall pay all earned fees for Services performed through the effective termination date and any documented non-cancelable third-party commitments incurred by Provider.

12.4 Effect of Termination: Upon termination or expiration of this Agreement, (i) all licenses granted herein immediately cease; (ii) Provider shall retain Customer Data for thirty (30) days to enable retrieval, after which it shall be permanently scrubbed; and (iii) Sections 1, 3, 4, 7, 8, 11, 12.4, and 15 shall survive.

SECTION 13. NON-SOLICITATION

13.1 Restrictions: During the Term and for a period of twelve (12) months following termination, neither Party shall directly solicit for employment or hire any key technical employee of the other Party without prior written consent. General public job advertisements shall not constitute a violation.

SECTION 14. ASSIGNMENT AND SUBLICENSING

14.1 Assignment: Neither Party may assign or transfer this Agreement, whether by merger, reorganization, or operation of law, without the prior written consent of the other Party, except that either Party may assign this Agreement without consent to a successor entity acquiring all or substantially all of its assets or voting securities.

SECTION 15. GOVERNING LAW AND VENUE

15.1 Delaware Law: This Agreement, and all claims or causes of action (whether in contract, tort or statute) that may be based upon, arise out of or relate to this Agreement, shall be governed by, and enforced in accordance with, the internal laws of the State of Delaware, without giving effect to any choice of law rule that would result in the application of the laws of any other jurisdiction.

15.2 Exclusive Jurisdiction: Each Party irrevocably submits to the exclusive personal jurisdiction of the state and federal courts sitting in New Castle County, Delaware.

SECTION 16. GENERAL AND MISCELLANEOUS

16.1 Entire Agreement (Merger Clause): This Agreement, together with all Exhibits, Schedules, and executed Service Orders, constitutes the final and entire agreement between the Parties concerning the subject matter hereof and supersedes all prior drafts, oral understandings, representations, and negotiations. No modification shall be valid unless in writing and signed by authorized signatories of both Parties.